

25NNCV08186 25NNCV08186

County: los-angeles

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Case Number: 25NNCV08186 Hearing Date: July 31, 2026 Dept: B

Hon. Victor Avila, Dept B

Motion to Bifurcate

Hearing Date: 7/31/26

CASE NO./NAME: 25NNCV08186 / Loyd v.

Pasadena Highlands, et al.

Moving Party: Defendants Pasadena Highlands,
625 Investments, LLC dba Pasadena Highlands, and Wellquest Living, LLC

Responding Party: Plaintiff Sylvia Loyd

Notice: Sufficient

Ruling: GRANT in part.

NOTICE

The

Court is not requesting oral argument on this matter/motion. The Court is guided by California Rules of Court, Rule 3.1308(a)(1) whereby notice of intent to appear is requested. Unless the Court directs argument in the Tentative Ruling, no argument is requested and any party seeking argument should notify all other parties and the court by 4:00 p.m. on the court day before the hearing of the party's intention to argue as to this matter/motion. The tentative ruling will become the ruling of the court if no argument is received. Notice may be given either by email at

 or by telephone at (818) 260-8422.

Parties

must appear on all other matters scheduled for this case.

BACKGROUND

This is an elder abuse action. On November 18, 2025, plaintiff Sylvia Loyd (Plaintiff) filed a Complaint against Pasadena Highlands, 625 Investments, LLC dba Pasadena Highlands, and Wellquest Living, LLC, and DOES 1-50 (collectively Defendants) alleging causes of action for elder abuse and neglect, negligence, breach of contract, and willful misconduct. Trial is set for September 8, 2026.

On July 2, 2026, Defendants filed the instant motion to bifurcate trial into three phases. On July 20, 2026, Plaintiff filed an opposition. No reply has been filed as of July 28, 2026.

LEGAL

STANDARD

Courts may order a separate trial of any cause of action or any separate issue in furtherance of convenience or when separate trials will be conducive to expedition and economy. (Code Civ. Proc., § 1048, subd. (b).) The Court may also order the trial of an issue to precede the trial on another issue. (Code Civ. Proc., § 598.)

Additionally, Evidence Code § 320 provides that “[e]xcept as otherwise provided by law, the court in its discretion shall regulate the order of proof.” “Under these provisions, trial courts have broad discretion to determine the order of proof in the interests of judicial economy.” (Grappo v. Coventry Financial Corp. (1991) 235 Cal.App.3d 496, 504.) Further, “[t]he statutory provisions for severance and separate trials (Code Civ. Proc., §§ 598, 1048) are not limited to the separate trial of a ‘cause of action’ but also authorize a separate trial of any ‘issue.’” (American Motorists Insurance Co. v. Superior Court (1998) 68 Cal.App.4th 864, 872.)

DISCUSSION

Defendant seeks

an order bifurcating trial in the instant action as follows: (Phase 1) Alter-Ego; (Phase 2) Liability; (3) Punitive Damages. (Mot., p. 5.) Defendant seeks this order in the interest of justice and the judicial economy to efficiently manage the trial which they argue involves complex litigation. (Mot., p. 6.)

Plaintiff does

not oppose the motion. (Opp., p. 2.) However Plaintiff argues that she does not assert an alter-ego theory in this case, as such Phase 1 proposed by Defendant is unnecessary. Plaintiff does not oppose the motion to bifurcate issues of liability and punitive damages provided the same jury hears both issues. (Opp., pp. 2-3.)

The Court has

reviewed the Complaint and although the term "alter-ego" is used, Plaintiff does not assert liability against any party under an alter-ego theory. (Comp., ¶ 5 ("Plaintiff is informed and believes that WELLQUEST LIVING, LLC is a limited liability company...and at all times mentioned herein was the management company, operator, joint venture, partner, and/or alter-egos of PASADENA HIGHLANDS").) As such, the issue of liability is alleged against and encompassing of all named Defendants. (Comp., ¶¶ 46-54.) Plaintiff cites *Rivera v. Sassoon* which states "the reason for requiring the same jury to try the liability and punitive damage phases of the case is that "[p]unitive damages are not simply recoverable in the abstract. They must be tied to oppression, fraud or malice in the conduct which gave rise to liability in the case." (*Rivera v. Sassoon* (1995) 39 Cal.App.4th 1045, 1048.) Although the court in *Rivera* the court held that the implementation of two alternate jurors did not upset this requirement as set forth in Code for Civil Procedure section 3295, the court is persuaded by the position that the two issues are dependent on one another and should be evaluated by the same triers of fact.

Thus, the Court holds

that Plaintiff's position is reasonable and grants unopposed bifurcation as to Phase 2 and Phase 3 on the condition that the same jury evaluate both issues. Since Plaintiff does not assert liability based on an alter-ego theory, the court denies bifurcation as to Phase 1 because it is a non-issue.

Accordingly, the motion is GRANTED in part.

CONCLUSION
AND ORDER

Defendant's Motion for Bifurcation is GRANTED
in part.

MOVING PARTY is to give notice and submit
a proposed order consistent with this ruling.